

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 9, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 12:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Ken Esquibel, Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Johnson, and pursuant to support received by Mr. White and Dr. Aldrich, agenda item #9 was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Johnson, agenda item #16(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on July 26, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to receive comments and input for the Hitching Post Urban Renewal Plan and Project, as required by Wyoming Statute §15-9-109, for land generally located northwest of West Lincolnway and Stinson Avenue. Mark Christensen, Planning and Development Department, provided information on the Urban Renewal Plan and Project stating the property has been declared as slum or blight by resolution which also created the Urban Renewal Area (URA). Mr. Christensen provided information on the creation of a TIF (tax increment financing) district which will allow for diverting a portion of taxes to help finance development in the area. Mr. Christensen further provided information on what the proposed development will include and how much tax increments are anticipated to be received, noting staff recommends approval of the item. Upon inquiry regarding why property south of Lincolnway is included in the plan and project, Mr. Christensen explained when the blight study was originally conducted, it was unknown what the boundaries would be, but the Lincolnway right-of-way is included in case funding is available for improvements. Melissa Burke, attorney from Hathaway and Kunz on behalf of Stephanie White and Dosser, LLC, property owner in the corridor, read a letter on behalf of Ms. White into the record that provided history on the Hitching Post property. Ms. White’s letter also noted she was unaware that her land to the northwest of the Hitching Post is included in the URA until last week and acknowledged state statute doesn’t require landowner notification. Ms. White requested the URA to amend their bylaws. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located north of and adjacent to Miller Lane, between Sunset Drive and Townsend Place – referred to Public Services Committee. (Sponsor – Dr. Rinne)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Sweetgrass, 7th Filing, a subdivision of a portion of the N½ of Section 16, Township 13 North, Range 66 West of the 6th P. M., City of Cheyenne, Laramie County, Wyoming (located south of East College Drive and adjacent to Sweetgrass Drive) (Postponed from July 26, 2021). Reporting for Public Services Committee, Dr. Rinne moved to adopt, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute map dated July 21, 2021, seconded by Mr. Segrave. Motion to amend by substitute map carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6165)

RESOLUTION – Authorizing a one-time payment given to the full-time and permanent part-time employees of the City of Cheyenne (excluding elected officials and employees of the Cheyenne Board of Public Utilities) from funds received from the Coronavirus State and Local Fiscal Recovery Fund Established by the American Rescue Plan Act of 2021. Reporting for Finance Committee, Mr. Roybal moved to adopt, seconded by Mr. White. Comments were made and concerns were voiced related to hardships first responders and frontline workers faced during the pandemic including: working in Covid “hot zones”, childcare issues, increased workload for Sanitation workers, increased calls for domestic related issues and employees riding in vehicles and equipment together with increased Covid exposure. Motion carried. Voting “yes” – all members of the governing body. (#6166)

[CA] RESOLUTION – Approving the Hitching Post Urban Renewal Plan and the Hitching Post Urban Renewal Project Pursuant to Wyoming Statute §15-9-110, and approving the creation of a new Hitching Post Urban Renewal Authority Special Revenue fund – referred to Public Services Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Business Council under the Business Ready Community Grant and Loan Program for a Managed Data Center Cost Reduction Grant not to exceed \$2,250,000.00 on behalf of the governing body of the City of Cheyenne – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City of Cheyenne Board of Public Utilities to discharge uncollectible debts in the amount of \$1,138.02 pursuant to Wyo. Stat. §16-4-502 – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W. S. §16-4-112 & §16-4-113 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Grant of Access Easement and Temporary Construction Easement on City owned Property, Tract U, Sweetgrass, 2nd Filing, between the City of Cheyenne and Sweetgrass Land Co., LLC. Motion (per Consent Agenda) carried. (#7385)

[CA] Agreement between City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming for juvenile probation services (revenue to the City). Motion (per Consent Agenda) carried (in an amount of \$60,000.00 revenue to the City). (#7386)

[CA] Contract between Laramie County and the Office of Youth Alternatives for on-call crisis center services in the amount of \$69,000.00 (revenue to City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Community Recreation & Events, and the Officials for Fun Club to officiate the 2021-2022 youth volleyball, adult volleyball, and adult co-rec volleyball programs (Recreation Programs Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization and LSC Transportation Consults, Inc., Colorado Springs, CO, for the 2022 Transit Development Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Contract Modification #6 to Contract #5930 between the City of Cheyenne and Kone, Inc., Denver, CO, for the addition of an elevator located at the Judge Joseph M. Carey Cheyenne City Center Building (General Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7256 between the City of Cheyenne and Dan Hart Patrol Service, LLC, Upton, WY, for the Happy Jack Landfill Phase 2, Cells 1, 2 and 3 Excavation Earthworks Project for an increase in rock excavation quantities and addition of Duke Energy Maintenance Road relocation (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7072 for the Hazard Mitigation grant from the Wyoming Office of Homeland Security, in the amount of \$191,430.85 for Dry Creek Drainage Planning by extending the term of the grant agreement to August 5, 2022 (DHS FEMA Grant-Dry Creek Drainage Plan) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7309 between the City of Cheyenne and Synergy Construction, LLC, Lovell, WY, for the Happy Jack Landfill Front Entrance and Scale House Project to build an on-site scale house building (Solid Waste Fund) – referred to Finance Committee.

Consideration of Bid #E-40-21 for a contract between the City of Cheyenne and Goat Green, LLC, for providing vegetation management for Dry Creek and Crow Creek, for the City of Cheyenne Engineering Department (2019-2022 1% Sales Tax). Mr. Roybal moved to approve in an amount not to exceed \$69,776.00, seconded by Mr. Laybourn. Upon inquiry, Tom Cobb, City Engineer, advised the bid from Goat Green, LLC, was the only bid received and explained the cost increase as compared to previous contracts may be related to revised base bid qualifications that include 5 years of experience and increased insurance requirements. Mr. Cobb noted upon inquiry,

that this type of vegetation management is an effective way to maintain landscape in flood areas. Upon further inquiry, Mr. Cobb and Jason Sanchez, Deputy Director of Community Recreation and Events, provided information on prior funding details for the service noting Weed and Pest used to assist in the funding but no longer has it in their budget. It was noted that the Engineering Department and the Weed and Pest Division will work together on partnering for future funding. During comments related to vegetation in other drainage ways that needs to be addressed, City Attorney Michael O'Donnell advised there is an ordinance drafted for a stormwater drainage utility to be brought before the governing body in the near future. Mr. Cobb, upon inquiry, advised he is working on updating the stormwater management plan including adding a task to the Dry Creek Master Plan which includes reviewing the drainage ordinance. Further comments were made regarding the importance of management of drainage ways and development of a stormwater drainage utility. Motion carried. Voting "yes" – all members of the governing body. (#7387)

[CA] Consideration of Bid #E-1-22 for furnishing two (2) new 2021 4WD 72" front-mount mowers for City of Cheyenne, Community Recreation & Events Department (2015-2018 1% Sales Tax and Specific Purpose Sales Tax Funding) – referred to Finance Committee.

[CA] Consideration of Bid #S-23-21 for a contract between the City of Cheyenne and Kaiser Corporation d/b/a Kaiser Flooring, Cheyenne, for the Municipal Building 3rd Floor Carpet Replacement Project (General Fund) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held August 23, 2021 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to hear public comment regarding the intent of the City of Cheyenne to submit an application for funding for the Wyoming Business Council's Business Ready Community Grant and Loan, Managed Data Center Cost Reduction Grant not to exceed \$2,250,000.00 for reducing the communications and utility costs for three years through the reimbursement of accrued utility expenses and encouraging employment and private investment by Project Bison.

Under other business:

Mayor Collins advised he would like to meet in Executive Session for the purpose of discussing a land transaction and noted there will be no further action taken after the meeting and that the regular meeting of the governing body will be adjourned following adjournment of the Executive Session. Mr. White moved to meet in executive session at 6:35 p.m., seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body.

Following adjournment of the Executive Session, Mayor Collins reconvened the regular meeting of the governing body at 6:55 p.m. and there being no further business to come before the governing body, the meeting was officially adjourned at 6:56 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
August 14, 2021